

25TRCV01991 25TRCV01991

County: los-angeles

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Case Number: 25TRCV01991 Hearing Date: July 30, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

RASHID

EL MALIK;

Plaintiff,

vs.

CEDARS-SINAI

MEDICAL CENTER

, et al.;

Defendants.

Case

No.:

25TRCV01991

Hearing

Date:

July
30, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

RASHID EL MALIK'S MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORY,
SET ONE, NO. 4

(2)

PLAINTIFF

RASHID EL MALIK'S MOTION TO COMPEL FURTHER RESPONSE TO REQUEST FOR
PRODUCTION, SET ONE, NO. 14

(3)

DEFENDANT

RASHID EL MALIK'S REQUEST FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiff, Rashid El Malik

RESPONDING

PARTY: Defendant, Cedars-Sinai

Medical Center

(1)

Plaintiff

Rashid El Malik's Motion to Compel Further Response to Special Interrogatory,
Set One, No. 4 is DENIED pursuant to California Rules of Court, rule 3.1345.

(2)

Plaintiff

Rashid El Malik's Motion to Compel Further Response to Request for Production,
Set One, No. 14 is DENIED pursuant to California Rules of Court, rule 3.1345.

(3)

Plaintiff

Rashid El Malik's Request for Monetary Sanction is DENIED pursuant to California Rules of Court, rule 3.1345.

The Court considers the moving papers filed on May 18, 2026, the supplemental declaration filed on July 15, 2026, the opposition brief filed on July 20, 2026, the reply brief filed on July 22, 2026, and the notice filed on July 24, 2026.

BACKGROUND

Factual Background

On June 20, 2025, plaintiff Rashid El Malik ("Plaintiff") filed their Complaint against defendants Cedars-Sinai Medical Center ("CSMC"), Dr. Peyman Moradzadeh, M.D., and DOES 1 through 50. The Complaint includes the following causes of action: (1) Medical Malpractice/Professional Negligence; (2) Lack of Informed Consent; and (3) Negligent Post-Operative Care.

On February 25, 2026, Plaintiff filed an amendment to the Complaint, naming Dr. Ariel Moradzadeh, M.D. as a defendant.

On February 27, 2026, Plaintiff served CSMC with discovery requests, which included: (1) Special Interrogatories, Set One, and (2) Request for Production of Documents, Set One.

(Declaration of Plaintiff ("Plt. Decl."), ¶ 3; Declaration of Lee M.

Moulin ("Moulin Decl."), ¶ 3, Exh. A.) On

April 1, 2026, CSMC provided its responses to the discovery requests. (Plt. Decl., ¶ 4; Moulin Decl., ¶¶ 4-5, Exhs. B-C.)

On April 16, 2026, the Court mandated that the parties engage in a meet-and-confer discussion via telephone.

(Plt. Decl., ¶ 5.) On an

unspecified date, Plaintiff contacted CSMC's counsel and reportedly narrowed the scope of the dispute to credentials related to the surgery dates in 2023. (Plt. Decl., ¶ 5.)

On April 28, 2026, CSMC's counsel issued a response via email, which included a meet-and-confer letter explaining the sufficiency of their responses. (Plt. Decl., ¶ 6, Exh. A.) On the same day, Plaintiff replied, asserting that CSMC should either supplement or clarify its previous responses. (Plt. Decl., ¶ 7, Exh. B.)

On May 8, 2026, CSMC's counsel provided another meet-and-confer letter along with Dr. Ariel Moradzadeh's privilege card. (Plt. Decl., ¶¶ 8-9, Exh. C.)

On May 12, 2026, Plaintiff communicated via email to CSMC's counsel, indicating that the privilege card did not cover the requested dates. (Plt. Decl., ¶ 10, Exh. D.) Plaintiff requested that CSMC either furnish a relevant privilege card or confirm in supplemental responses that no such card exists. (Plt. Decl., ¶ 10, Exh. D.) Plaintiff requested this information by May 15, 2026, indicating that any failure to comply would result in Plaintiff proceeding with a motion to compel. (Plt. Decl., ¶ 10, Exh. D.) CSMC's counsel did not provide a response by the stated deadline. (Plt. Decl., ¶ 10, Exh. D.)

On June 10, 2026, CSMC supplied further responses to Special Interrogatories, Set One, No. 4. (Moulin Decl., ¶ 7, Exh. D.)

On June 22, 2026, CSMC's counsel reached out to Plaintiff via email in an effort to resolve the matter informally. (Moulin Decl., ¶ 8, Exh. E.) CSMC's counsel elaborated on their rationale for believing that the responses were sufficient and compliant with the relevant code, and informed Plaintiff of the absence of a separate statement despite the proof of service indicating that one had been included. (Moulin Decl., ¶ 8, Exh. E.) However, on June 25, 2026, Plaintiff responded by requesting supplemental answers to Special Interrogatory No. 4 and Request for Production No. 14. (Moulin Decl., ¶ 9, Exh. E.)

On July 21, 2026, CSMC provided further responses to both discovery requests. (Notice, Exhs. 1-2.)

LEGAL STANDARDS

Code of Civil Procedure

section 2030.300 provides that “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that” the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., §2030.300, subd. (a).) “[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., §2030.300, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover,

“[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).) “Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc., § 2023.010, subd. (d).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or

opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiff was required to meet and confer with CSMC before filing this omnibus motion. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion [to compel] shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On April 16, 2026, the Court mandated that the parties engage in a meet-and-confer discussion via telephone. (Plt. Decl., ¶ 5.) On an unspecified date, Plaintiff contacted CSMC’s counsel and reportedly narrowed the scope of the dispute to credentials related to the surgery dates in 2023. (Plt. Decl., ¶ 5.)

On April 28, 2026, CSMC’s counsel issued a response via email, which included a meet-and-confer letter explaining the sufficiency of their responses. (Plt. Decl., ¶ 6, Exh. A.) On the same day, Plaintiff replied, asserting that CSMC should either supplement or clarify its previous responses. (Plt. Decl., ¶ 7, Exh. B.)

On May 8, 2026, CSMC’s counsel provided another meet-and-confer letter along with Dr. Ariel Moradzadeh’s privilege card. (Plt. Decl., ¶¶ 8-9, Exh. C.)

On May 12, 2026, Plaintiff communicated via email to CSMC’s counsel, indicating that the privilege card did not cover the requested dates. (Plt. Decl., ¶ 10, Exh. D.) Plaintiff requested that CSMC either furnish a relevant privilege card or confirm in supplemental responses that no such card exists. (Plt. Decl., ¶ 10, Exh.

D.) Plaintiff requested this information by May 15, 2026, indicating that any failure to comply would result in Plaintiff proceeding with a motion to compel. (Plt. Decl., ¶ 10, Exh. D.) CSMC's counsel did not provide a response by the stated deadline. (Plt. Decl., ¶ 10, Exh. D.)

Accordingly, the Court finds that Plaintiff sufficiently met and conferred with CSMC before filing this omnibus motion.

DISCUSSION

Omnibus Motion

Plaintiff is seeking a court order to compel CSMC to provide further, code-compliant, verified responses, without objections, and to produce all documents related to Special Interrogatory No. 4 and Request for Production No. 14. (MTCF, p. 2:13-17.) Plaintiff has erroneously combined two distinct motions into one omnibus motion.

Multiple motions should not be combined into a single filing. (See Gov. Code, § 70617, subd. (a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing].) Combining multiple motions under the guise of one motion with one hearing reservation manipulates the Court Reservation System and unfairly jumps ahead of other litigants. Moreover, combining motions to avoid payment of separate filing fees deprives the Court of the filing fees it is otherwise entitled to collect. Filing fees are jurisdictional, and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.)

The Court informs Plaintiff that all future motions must be filed individually, pursuant to Government Code section 70617. Any omnibus filings submitted in the future shall be denied without prejudice.

California Rules of Court, rule 3.1345

"Except as provided in (b), any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement

include a motion: ... ¶ (2) To

compel further responses to interrogatories; [and] ¶ (3)

To compel further responses to a demand for inspection of documents or tangible things[.]” (Cal. Rules of Court, rule 3.1345(a)(3).) However, “[a] separate statement is not required under the following circumstances:

¶ (1) When no response has been

provided to the request for discovery;

¶ (2) When a court has allowed

the moving party to submit--in place of a separate statement--a concise outline of the discovery request and each response in dispute.” (Cal. Rules of Court, rule 3.1345(b).)

Here, CSMC

provided its responses to the discovery requests on April 1, 2026. (Plt. Decl., ¶ 4; Moulin Decl., ¶¶ 4-5, Exhs. B-C.)

Given that CSMC responded, it is necessary to include a separate statement or concise outline of the discovery requests. However, Plaintiff has not furnished either document. This issue is exacerbated by Plaintiff's failure to include the discovery requests and responses for the Court's review. It is Plaintiff's responsibility to supply this information to enable the Court to evaluate the merits of Plaintiff's motion.

As such, Plaintiff's omnibus motion and the accompanying request for monetary sanctions is DENIED.

ORDERS

1) Plaintiff

Rashid El Malik's Motion to Compel Further Response to Special Interrogatory, Set One, No. 4 is DENIED.

2) Plaintiff

Rashid El Malik's Motion to Compel Further Response to Request for Production, Set One, No. 14 is DENIED.

3) Plaintiff

Rashid El Malik's Request for Monetary Sanction is DENIED.

4) Defendant

Cedars-Sinai Medical Center is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 30, 2026

Tamara
Hall

Judge
of the Superior Court